

any action or suit, or interfere in any other legal proceeding, without first consulting the Court as to the propriety of so doing (*c*): a trustee for sale cannot sell (*d*): the committee of a lunatic cannot make repairs (*e*): an executor cannot pay debts (*f*), or deal with the assets for the purpose of investment (*g*). But an executor as to a chattel, not the subject of the suit *specifically*, can after decree give a good title to a *bonâ fide* purchaser not having actual notice of the *lis pendens* (*h*), and it is presumed that he can equally, where there is no receiver appointed, sign a valid receipt for any part of the testator's personal estate. But where an administration action has been heard on further consideration, and no subsequent further consideration has been reserved, but general liberty to apply has been given, trustees may exercise their powers without obtaining the sanction of the Court.¹

60. **Case of suit and no decree.**—An action in which a *writ* merely has been issued is distinguishable from one in which a *decree* has been made, for until decree the plaintiff may dismiss his action at any moment, and should he do so, the progress of the trust may have been arrested for no purpose (*i*). However, even in this case the trustees cannot be advised to act without first consulting the Court, and if by acting independently of the Court expenses be incurred which might have *been avoided had the [*598]

(*c*) See *Jones v. Powell*, 4 Beav. 96. The court is sometimes reluctant to give leave to institute or defend a suit, but holds out that if the trustee or executor acts *bonâ fide* the Court will protect him. The reason for this disinclination no doubt is that the application to the Court is *ex parte*, and is sometimes made a vehicle for multiplying costs. However, the Court frequently gives such leave, and a trustee or executor cannot be advised to commence or defend a suit without, at least, submitting the case to the Court, though no order may be made.

(*d*) *Walker v. Smalwood*, Amb. 676; *Annesley v. Ashurst*, 3 P. W. 282.

(*e*) *Anon. case*, 10 Ves. 104.

(*f*) *Mitchelson v. Piper*, 8 Sim. 64; *King v. Roe*, L. J. May, 27, 1858; *Irby v. Irby*, 24 Beav. 525; and see *Jackson v. Wooley*, 12 Sim. 13.

(*g*) *Widdowson v. Duck*, 3 Mer. 494; *Bethell v. Abraham*, 17 L. R. Eq. 24.

(*h*) *Berry v. Gibbons*, 8 L. R. Ch. App. 747.

(*i*) *Cafe v. Bent*, 3 Hare, 240; *Neeves v. Burrage*, 14 Q. B. 504.

¹ *Re Mansel*, 52 L. T. N. S. 806; 33 W. R. 727; 54 L. J. Ch. 883.